

198. General Power to make rules. – Without prejudice to any power to make rules contained elsewhere in this Act, the Central Government may make rules generally to carry out the purposes of this Act.

Comment.

Section 198 empowers the Central Government to make rules generally to carry out the purposes of this Act.

199. Rules to be laid before parliament. –Every rule made under this Act shall be laid, as soon as may be after it made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

Comment

Section 199 provides that any rule and regulation made under this Bill shall be laid before Houses of Parliament.

200. Repeal and saving. – (1) The Indian Railways Act, 1890 (9 of 1890) is hereby repealed.

(2) Notwithstanding the repeal of the Indian Railways Act, 1890 (9 of 1890) (herein after referred to as the repealed Act) -

- (a) anything done or any action taken or purported to have been done or taken (including any rule, notification, inspection, order or notice made or issued, or any appointment or declaration made or any license, permission, authorization or exemption granted or any document or instrument executed or any direction given or any proceedings taken or any penalty or fine imposed) under the repealed Act shall, in so far as it is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the corresponding provisions of this Act.
- (b) Any complaint made by the Railway Rates Tribunal under sub-section (1) of Sec. 41 of the repealed Act but not imposed or before the commencement of this Act and any complaint that may be made to the said Tribunal against any act or omission of a railway administration under the repealed Act shall be heard and decided by the Tribunal

constituted under this Act in accordance with the provisions of Chapter VII of this Act.

(3) The mention of particular matters in sub-section (2) shall not be held to prejudice or affect the general application of Sec. 6 of the General Clauses Act, 1897 (10 of 1897), with regard to the effect of repeal.

Comment

Section 200 seeks to repeal the Indian Railways Act, 1890 and saves any action taken under the repealed Act.

Distinction between “repeal” and “amendment”. – It is a matter of legislative practice to provide while enacting an amending law, that an existing provision shall be deleted and a new provision submitted. There is no real distinction between “repeal” and an “amendment”.

Prior amendments stand repealed only if it was not consistent with provision of Central Act. – The provision of the Central Act, be given full effect and any prior amendment made by the High Court or by the State Legislature, would stand repealed only if it was not consistent with the provision of the Central Act.
